

Non-Management Rental Listing Agreement (Washington, DC)

This Agreement made on April 4, 2023, by and between Kimani Clark herein after referred to as "Owner" who represents that he has the right to lease the property located at 1830 Jefferson Place NW #21, Washington, DC 20036

(the "Property"), and TTR Sotheby's International Realty, herein after referred to as "Broker."

It is understood that the Broker and Owner will abide by federal, state and local laws, ordinances and regulations governing fair housing rules and practices regarding discrimination as well as all other pertinent laws. The Property listed herein shall be shown and made available to all persons without regard to race, color, religion, national origin, sex, age, marital status, personal appearance, sexual orientation, gender identity or expression, familial status, family responsibilities, matriculation, political affiliation, genetic information, disability, source of income, or place of residence or business. NOW, THEREFORE, in consideration of the premises and the covenants herein after contained, it is hereby agreed by and between the parties hereto as follows:

1. AGREEMENT PERIOD: The Owner hereby grants the Broker this exclusive authorization to rent (lease) the Property at 1830 Jefferson Place NW #21 Washington DC 20036
(Street Address) (City) (State) (Zip)

upon the terms herein after set forth for the period of _____ beginning on _____ and ending at 11:59 p.m. on _____. The Property will be available for occupancy on or about **To be determined by Owner**

The Property is within the Jefferson Row (Print name of community association, if applicable.) Owner confirms he has the right to lease the property not withstanding any restrictions to the contrary by any community association. It is agreed that said property shall not be managed by Broker.

Mail Box Number: _____ Reserve Parking Space Number(s)/Location: 1 Storage Unit Number: N/A
Move-In Fee: \$ _____ Move-Out Fee: \$ _____ Elevator Usage Fee: \$ _____

2. RENTAL TERMS: The Owner hereby authorizes the Broker to offer the property for rent at a monthly rental of **\$9,500.00**. Leases are to be written on the applicable Greater Capital Area Association of REALTORS®, Inc. recommended lease form.

Additional Leasing Information:

Term Available: Minimum _____ Maximum **6 Months**

Number of Occupants (pursuant to jurisdictional requirements): _____

Amount of Security Deposit Required (not to exceed the **first** full month's rent): **Security Deposit = First Month's Rent**

Pets Accepted: ☐ YES ☐ NO If yes, please be specific: **Case-by-Case Basis. To be determined by Owner**

Non-refundable Pet Fee (This is not a Security Deposit) ☐ YES ☐ NO \$ _____

3. LEASING FEE: Owner agrees to pay Broker a leasing fee when a tenant has been obtained and a lease agreement consummated. The leasing fee shall be **equal to first month's rent** for a one (1) year lease, **equal to first month's rent** for a two (2) year lease; and **equal to first month's rent** for a three (3) year lease. Owner agrees to pay the leasing fee when a tenant has been obtained who is ready, willing and able to lease the premises on the terms and conditions set forth herein or any variance from those terms to which the Owner may agree. Broker may retain said fees (or portion thereof) from the first full month's rent paid by tenant. Compensation to Broker shall be paid in accordance with the terms hereof. Additionally, any leasing fee shall be paid if a tenant has been shown the property prior to the expiration of this Agreement even though the execution of the lease occurs after the expiration.

Owner to initial: KL / _____ **The leasing fee shall be equal to 50% of the first month's rent for a six(6) month lease. The leasing fee shall be equal to 25% of the first month's rent for a three(3) month lease.**

4. PERSONAL PROPERTY AND FIXTURES INCLUDED: The Property includes the following personal property and fixtures, if existing: built-in heating and central air conditioning equipment, plumbing and lighting fixtures, sump pump, attic and exhaust fans, storm windows, storm doors, screens, installed wall-to-wall carpeting, window shades, blinds, window treatment hardware, smoke and heat detectors, TV antennas, exterior trees and shrubs. Unless otherwise agreed to in writing, all surface or wall mounted electronic components/devices DO NOT convey. If more than one of an item convey, the number of items is noted.

The items marked YES below are currently installed or offered.

Yes	No	#	Items	Yes	No	#	Items	Yes	No	#	Items
☐	☐		Alarm System	☐	☐		Freezer	☐	☐		Satellite Dish
☒	☐	1	Built-in Microwave	☐	☐		Furnace Humidifier	☐	☐		Storage Shed
☐	☐		Ceiling Fan	☒	☐		Garage Opener	☒	☐	1	Stove or Range
☐	☐		Central Vacuum	☒	☐		w/ remote	☐	☐		Trash Compactor
☒	☐	1	Clothes Dryer	☐	☐		Gas Log	☐	☐		Wall Oven
☒	☐	1	Clothes Washer	☐	☐		Hot Tub, Equip, & Cover	☐	☐		Water Treatment System
☐	☐		Cooktop	☐	☐		Intercom	☐	☐		Window A/C Unit
☒	☐	1	Dishwasher	☐	☐		Playground Equipment	☐	☐		Window Fan
☒	☐	1	Disposer	☐	☐		Pool, Equip, & Cover	☐	☐		Window Treatments
☐	☐		Electronic Air Filter	☒	☐	1	Refrigerator	☐	☐		Wood Stove
☒	☐	1	Fireplace Screen/Door	☒	☐	1	w/ ice maker				

OTHER: Wine Cooler

5. MARKETING/VIRTUAL OFFICE WEBSITES ("VOW"):

Internet Marketing Options: Certain features may be displayed on the websites of MLS participants, including:

Owner to Initial **YES** **NO:**

^{DS}
☒ KL / _____

☒

☐ 1) Owner authorizes the listed Property to be displayed on the internet.

If Owner has selected "No" for this Option, a consumer who conducts searches for listings on the Internet will not see information about the listed property in response to their search.

Initial here _____ / _____

If "No" was selected for Option 1, skip Options 2-4. If "Yes" was selected for Option 1, continue to Options 2-4

^{DS}
☒ KL / _____

☒

☐ 2) Owner authorizes the listing address, (including house/unit numbers and street name) to be displayed on the internet.

If Owner has selected "No" for this Option, a consumer who conducts searches for listings on the Internet will not see this particular information about the listed Property in response to their search.

Initial here _____ / _____

^{DS}
☒ KL / _____

☒

☐ 3) Owner authorizes the display of an automated estimate of the market value of the property (or a hyperlink to such estimate) on MLS participants' websites.

^{DS}
☒ KL / _____

☒

☐ 4) Owner authorizes the display of unedited comments or reviews of the property (or display a hyperlink to such comments or reviews) on MLS participants' websites. (Aka the "Blogging Feature")

During the term of this agreement, Owner may, by written request to Broker, authorize Broker to enable or disable use of either feature as described above. Broker agrees to promptly transmit the request to the MLS. Broker cannot control if unauthorized or disabled features are displayed by others on the internet. Owner understands and agrees that public websites determine their own content and use of data, and therefore Broker has no control over public websites and no obligation to remove any of the above

Owner to initial: ^{DS}
☒ KL / _____

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content from public websites at any time. Broker is further authorized to and shall market the Property through various means including, but not limited to entering the Property into the applicable multiple listing service(s) ("MLS"), installing a sign, interior and exterior photographing the Property and installing a lock box. Owner authorizes Broker to market Property, including use of address and interior and exterior photographs, in media which may include, but not be limited to publications at Broker's discretion. Owner acknowledges that Broker is bound by the bylaws, policies and procedures and rules and regulations governing MRIS and the Key Box system Owner. Owner hereby authorizes Broker to report any contract of rent with rental price and terms of rent to MRIS for dissemination, in accordance with MRIS rules and policies.

6. CONDUIT OF FUNDS: It is understood by Owner and Broker that Broker, is acting in the capacity of rental agent only to procure tenant. It is further understood that all receipts collected by Broker on behalf of Owner are transferred to Owner, thus Broker, is acting as a conduit of funds. Accordingly, Owner understands that Broker shall not be liable or responsible for the receipts after funds are transferred to Owner.

7. SECURITY DEPOSIT: The Owner is hereby advised that he/she is required by the Housing Regulations of the District of Columbia to deposit all security deposits, within thirty (30) days of their receipt, into an interest bearing escrow account maintained by a federally insured bank or savings institution in the District of Columbia. Interest accrued is to be paid to the tenant in an amount required by the Housing Regulations of the District of Columbia.

8. TERMINATION: This Agreement may be terminated prior to the end of the Listing Period only by mutual written Agreement of the Parties.

9. SALE OF PROPERTY: In the event the property is sold to the tenant during the tenancy, any and all renewals or extensions thereof, or within 120 days after the termination of any tenancy; Owner recognizes Broker as the procuring cause of the sale and agrees to pay Broker a brokerage fee equal to zero % of the sales price. Further, it is agreed that if the Owner decides to sell or exchange said property during the period of this Agreement, any and all renewals and extensions thereof, the Broker shall have the EXCLUSIVE RIGHT TO SELL or EXCHANGE the property at a price and terms acceptable to the Owner and may accept a deposit therefore, and in case of such sale or exchange, the Owner agrees to pay Broker a fee of zero % of the sale or exchange price.

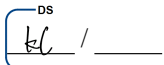
10. LOSS PREVENTION: The Broker is not responsible for vandalism, theft or damage to the property or personal belongings left on the property. Owner is to maintain proper fire and extended coverage insurance, including vandalism, malicious mischief and the like, as well as reasonable property damage and personal liability coverage whether or not the house is vacant or occupied. It is Owner's responsibility to confirm with their insurance company for appropriate coverage.

11. RULES & REGULATIONS: Owner is responsible for providing Broker with any and all community association or management rules and regulations, and Declaration, Covenants and Bylaws, where applicable. Owner acknowledges that property cannot be marketed until documents are received. These documents are to be given to the tenant upon execution of this agreement.

12. ENVIRONMENTAL DISCLOSURES: Owner is responsible for providing Broker with all information on known environmental hazards on the premises.

13. RENTAL LICENSE: Owner is responsible for obtaining and maintaining a rental facility license for the Property from the appropriate governmental agency in the appropriate jurisdiction. Owner agrees to indemnify and hold Broker harmless from any liability, damages or loss arising out of Owner's failure to obtain and maintain the requisite rental facility licenses and/or government approvals. Owner agrees to provide Broker with a copy of the rental facility license upon execution of this Agreement or as soon as the license is obtained, whichever first occurs. Owner acknowledges that the Property will not be marketed for rent until Owner has provided copies of all required certificates and licenses to Broker. Owner certifies that Owner has previously obtained for the Property the certificates and licenses listed below:

(1) Certificate of Occupancy	# <u>To be provided by owner</u>
(2) Housing Business License	# <u>To be provided by owner</u>
(3) Certificate of Registration/Exemption	# <u>To be provided by owner</u>

Owner to initial:  / _____

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14. SMOKE DETECTORS: Owner is advised that the Housing Code of the District of Columbia require that hard-wired smoke detectors be installed in the vicinity of sleeping areas and maintained in operating condition in accordance with such laws prior to any change in occupancy of a dwelling unit.

15. LEAD PAINT: According to the tax assessment records, the Property was constructed in **2006**.

A. Applicable Law: If the property was constructed prior to 1978, Owner acknowledges that the provisions of the Federal Residential Lead-Based Paint Hazard Reduction Act of 1992 ("the Federal Act") and the District's Regulation of Lead-Based Paint Activities (Title 20 DCMR, Chapter 33) will apply to the lease of the Property.

☒ The Property was constructed after 1978. The Federal act and the District's Regulation do not apply.

B. Owner's Compliance Requirements:

If the Federal Act is applicable:

a) Owner shall complete a Disclosure of Information on Lead-Based Paint and Lead-Based Paint Hazards form at the time of execution of this Agreement.

b) Broker shall provide the complete disclosure of Information form and required EPA Pamphlet ("Protect Your Family from Lead in Your Home") to tenant(s) at the time a lease is signed or before occupancy, in the event of a verbal lease.

If the District's Regulation of Lead-Based Paint Activities is applicable:

a) Owner shall complete the District's Lead Paint Disclosure Form at the time of execution of this Agreement.

C. Indemnification of Broker: Owner does for Owner, Owner's heirs, personal representatives and assigns, release, indemnify, acquit, exonerate, discharge and hold harmless Broker and all of the stockholders, partners, officers, agents and employees of Broker of and from all and every manner of action and actions, causes of actions, suits, debts, dues, sums of money, costs, including reasonable attorneys' fees, accounts, contracts, controversies, agreements, promises, variances, trespasses, damages, judgments, claims, and demands, whatsoever, directly or indirectly, at law or in equity, for any failure of Owner to perform or satisfy any of the requirements or provisions of the Federal Act or the District's Lead-Base Paint program; or any allegations of lead paint poisoning.

D. Renovation, Repair and Painting of Properties Built Prior to 1978 (RRP): In accordance with the Lead Renovation, Repair and Painting Rule ("RRP") as adopted by the Environmental Protection Agency ("the EPA"), effective April 22, 2010, if the improvement(s) on the Property was built before 1978, contractor(s) engaged by the Owner to renovate, repair or paint the Property must be certified by the EPA to perform such renovation, repair and painting projects that may disturb lead-based paint. Before and during any renovation, repair or painting project on any pre-1978 housing, contractor(s) must comply with all requirements of the RRP.

Should Owner personally perform any renovation, repair or painting project which might disturb lead-based paint in pre-1978 rental housing, must also be certified by the EPA prior to such renovation, repair or painting and conduct all renovation, repair or painting in accordance with the EPA lead-safe work practices and the RRP.

For detailed information regarding the RRP, Owner should visit:

<http://www2.epa.gov/lead/renovation-repair-and-painting-program>.

16. BROKER REPRESENTATION: Owner acknowledges that Broker may represent other owners who have similar properties for rent. Owner also acknowledges that Broker may represent tenants who are looking for similar properties to rent. Owner acknowledges that Broker may show other available properties to prospective tenants.

17. LIMITATIONS OF BROKER'S ABILITY: Owner acknowledges that Broker is being retained solely as a real estate agent and not as an attorney, tax advisor, lender, appraiser, surveyor, structural engineer, certified home inspector or other professional service provider. Owner has been advised to seek professional advice for legal, tax and other matters.

Owner to initial:  / _____

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18. PENDING OR ACTUAL BANKRUPTCY AND/OR FORECLOSURE/LOANS AND LIENS: Owner discloses to Broker that the following are the only existing liens/encumbrances against the Property and existing matters that could affect the rental of the Property, and further agrees to disclose any new liens or matters which arise during the Listing Period:

Yes/No:

- ☒ / ☐ **A.** Is the Owner current on all payments on all loan(s) on the property?
- ☐ / ☒ **B.** Is the Owner in default on any loans on the property for which the Owner received any notices of such default(s), notice of threatened foreclosure or notice of the actual filing of foreclosure?
- ☐ / ☒ **C.** Are there any liens filed or secured against the Property for Federal, State or local income taxes; unpaid real property taxes; or unpaid Co-operative, Condominium or Homeowners' Association fees/assessments; or utility liens?
- ☐ / ☒ **D.** Are there any judgments against Owner (including each Owner for jointly held property) or does the Owner have any knowledge of any matter that might result in a judgment that may potentially affect the property?
- ☐ / ☒ **E.** Has the Owner filed for bankruptcy protection under United States law, or is the Owner contemplating doing so during the term of this Agreement? Owner expressly authorizes Broker to contact bankruptcy attorney to determine the impact of such filing, including but not limited to if Owner has the authority to enter into this Agreement, if this Agreement must be approved by the Bankruptcy Court, and if any future sales contract requires Bankruptcy Court approval. Owner must immediately notify Broker if Owner files during the term of this Agreement.
- ☐ / ☒ **F.** Are there any other legal proceedings pending that could result in a judgment against the Owner or affect the property? If yes, please list below:

During the term of the Agreement, should any change occur with respect to any of the answers to items A-F above, Owner shall IMMEDIATELY give written Notice to Broker of such change(s).

19. MINISTERIAL ACTS: Owner agrees that Broker may perform ministerial acts for Owner and tenant. A ministerial act is an act that Broker performs on behalf of Owner or tenant after the execution of a lease or rental application which assists the tenant to complete or fulfill a lease term; and does not involve discretion or the exercise of Broker's own judgment.

20. ADDITIONAL PROVISIONS: This is a furnished rental unit. A list of the furnished items (i.e., furniture, decorative items, etc) will be compiled when the condo is ready to go live.

21. ADDENDA: Any addendum (a) attached hereto is made apart hereof and incorporated herein.
Addendum Attached ☐ YES ☒ NO

22. FINAL AGREEMENT:

A. The terms and provisions of this Agreement shall be construed and interpreted pursuant to the laws of the District of Columbia. If any provision is deemed invalid within this Agreement, it shall not affect the remaining provisions as stated herein which shall be deemed valid and enforceable. Feminine or neuter pronouns shall be substituted for those of the masculine form, and the plural shall be substituted for the singular number, in any place or places herein in which the context may require such substitution.

B. This Agreement shall be construed as having been entered into for business and commercial purposes.

C. The captions appearing in this agreement are inserted only as a matter of convenience and in no way define, limit, construe or describe the scope or intent of any paragraph or section of this agreement nor in any way affect this agreement.

D. Notices required to be given to Owner by this Agreement shall be in writing and effective as of the date on which such notice is delivered to the last known address of Owner or when mailed to Owner's address as shown on this Agreement. Notices required to be given to Broker by this Agreement shall be in writing and effective as of the date on which such notice is hand delivered or mailed to the address of Broker as shown on this Agreement.

E. This Agreement is entered into and made with complete understanding, accord, and without reservation and shall be binding upon any successors, assigns, executors or heirs of the parties hereto.

F. The terms of this Agreement shall survive the execution and delivery of any lease herein referenced and shall not be merged therein.

Owner to initial:  / _____

G. This Agreement contains the final and entire Agreement between the parties hereto and neither they are bound by any terms, conditions, statements, warranties or representations, oral or written, not herein contained. This Agreement has been executed in duplicate and the Owner acknowledges that a copy thereof was delivered to him at the time the Agreement was fully executed.

23. ELECTRONIC SIGNATURES: In accordance with the Uniform Electronic Transactions Act (UETA) and the Electronic Signatures in Global and National Commerce Act, or E-Sign (the Act), and other applicable local or state legislation regarding Electronic Signatures and Transactions, the parties do hereby expressly authorize and agree to the use of electronic signatures as an additional method of signing and/or initialing this Contract. The parties hereby agree that either party may sign electronically by utilizing a digital signature service.

Owner to initial:  / _____ Broker _____ / _____

THIS IS A LEGALLY BINDING CONTRACT. PLEASE READ BEFORE SIGNING.

IN WITNESS WHERE OF, the parties hereto have executed this Agreement in duplicate originals, one of which is retained by each of the parties.

TTR Sotheby's International Realty

Broker

DocuSigned by:

By:  4/4/2023
Agent _____ Date _____

Address: **1414 15th St NW**

Washington, DC 20024

Telephone Number(s): **(571)230-9686**

Telephone Number(s): _____

DocuSigned by:



4/24/2023

Owner _____

Date

Kimani Clark

Owner _____

Date

Mailing Address: **1830 Jefferson Place NW #21**

Washington, DC 20036

Telephone Number(s): **(301)674-1098**

Telephone Number(s): _____